Topic 10 — Local Government

Covers syllabus (click to expand)

Panchayati Raj (पंचायती राज): Panchayati Raj | Evolution (Balwant Rai (राई) Mehta (बलवंत राय), Ashok Mehta (अशोक मेहता), L.M. Singhvi, G.V.K. Rao (जीवीके राव), Thungon, Santhanam, Dantwala (दांताला)) | Three-Tier Structure | Gram Sabha (ग्राम सभा) | 73rd Amendment | Arts. 243–243O | Reservation in Panchayats | State Election Commission (निर्वाचन आयोग) | State Finance Commission (वित्त आयोग) | District Planning Committee | Eleventh Schedule (29) | PESA Act | Cooperative Societies | 97th Amendment & Cooperatives | UP Panchayati Raj **Urban (नगरीय) Local Bodies:** 74th Amendment | Arts. 243P–243ZG | Municipalities | Nagar Panchayat (नगर पंचायत) | Municipal Council | Municipal Corporation | Mayor (महापौर) vs Commissioner | Standing Committees | Reservation 243T | Ward Committee | MPC | Twelfth Schedule (18) | ULB finance | Cantonment Board (छावनी बोर्ड) | Notified Area Committee | Town Area Committee | Development Authorities | UP Nagar Nigam / Palika / Panchayat

Sources baked in: Laxmikanth (PRIs + ULBs), Constitution Parts IX / IXA / IXB, 11th & 12th Schedules, PESA 1996, 97th Amd, UPPCS Prelims PYQs 2018–2025 **Weight:** ★★★ — Part **IX** vs **IXA**; 73rd **24 Apr 1993** / 74th **1 June 1993**; SEC **not** ECI; age **21 not 25** (2025); women ≥**1/3**; 11th **29** / 12th **18**; Mayor ≠ Commissioner; Cantonment = **Defence**, not 74th; DPC **4/5** vs MPC **2/3**; first MC = **Madras 1688**; PESA **1996 Last verified:** September 2026 — Ghatnachakra Extra Drill (Panchayati Raj and Local Bodies); teaching gap-pass from dump **Current Affairs:** National PR Day **24 April**; UP **50%** women by State law; 17-odd UP Nagar Nigams (count moves)

Current Affairs

- **24 April** is National Panchayati Raj Day, marking when the 73rd Amendment came into force (1993).
- On **2 October 1959**, the first 3-tier Panchayati Raj system was inaugurated at Nagaur, Rajasthan.
- In **2021**, the Supreme Court in *Rajendra N. Shah* limited Part IXB (सहकारिता) (97th Amendment on cooperatives) to multi-State cooperatives only.
- Many States, including UP, now give women **50%** reservation by State law, well above the constitutional floor of **1/3** under Art. 243D.
- The Union **Ministry of Panchayati Raj** was created in **2004**.
- The **15th Finance Commission** gives grants to all three PRI tiers, partly tied to water and sanitation outcomes.
- Urban schemes such as **AMRUT, SBM-Urban, PMAY-U,** and **Smart Cities** (under MoHUA) do not replace the 74th Amendment framework.
- The **Madras Municipal Corporation (1688)** remains the first municipal corporation in India, followed by Bombay and Calcutta (1726).

Frame — why PRIs exist

- **Art. 40**, a Gandhian DPSP, directs the State to organise village panchayats and to endow them with powers to function as units of **self-government**.
- The 73rd Amendment made that directive justiciable by adding **Part IX** — giving Panchayats **constitutional** status, rather than leaving them as a favour of the State government.
- **Part IX** covers **Arts. 243–243O**, and the **11th Schedule** lists **29 subjects**. Both were added by the **73rd Amendment, 1992**, which came into force on **24 April 1993** (24 अप्रैल) — now celebrated as **National Panchayati Raj Day**.
- Local government still remains a **State subject** under **Entry 5 of the State List**. The 73rd Amendment **mandates only the skeleton** — the flesh, such as actual taxation powers, how much of the 29 subjects to devolve, and the Gram Sabha's real powers, is still decided by **State law**.

> **Logic:** Part for PRIs = **IX** (2020). Not VI (State), not IV (DPSP — that is only Art. 40).

PYQ — UPPCS Prelims 2020

Which Part of the Constitution has the provisions for Panchayati Raj System?

A. IX B. VI C. III D. IV A

Show answer

Ans: A — Part IX.

PYQ — UPPCS Prelims 2019, Q105

National Panchayati Raj Day in India is celebrated on

A. 26 January B. 2 October C. 21 April D. 24 April

Show answer

Ans: D — 24 April (73rd came into force). 2 October = first PRI inauguration (Nagaur, 1959) / Gandhi Jayanti — **not** the constitutional day.

PYQ — UPPCS Prelims 2022, Q49Assertion (A): The 73rd Amendment of the Constitution is considered to be a watershed in the history (इतिहास) of local self-government in India.

Reason (R): The 73rd Constitutional Amendment conferred the much-coveted constitutional status on Panchayats.

A. (A) is false, but (R) is true B. (A) is true, but (R) is false C. Both (A) and (R) are true, but (R) is not the correct explanation of (A) D. Both true and R is the correct explanation of A

Show answer

Ans: D.

Evolution — from Ripon to 73rd

Local government travelled from colonial local boards to a constitutional third tier in three broad stages — **Ripon (1882)**, **Nagaur (1959)**, and the **73rd Amendment (1993)**.

- In **1688**, the **Madras Municipal Corporation** was set up — the first municipal corporation in India (its urban-side detail is covered later in this chapter).
- In **1830**, **Charles Metcalfe (मेटकाफ़)** described Indian village communities as "**little republics**" that were nearly self-sufficient.
- In **1870**, **Mayo (मेयो)'s Resolution** began financial decentralisation to the provinces, and started the practice of rural local funds.
- In **1882**, **Lord Ripon** issued his famous resolution, later called the "**Magna Carta** of local self-government"; Ripon is remembered as the "**Father of local self-government in India**".
- Ripon's resolution gave local boards a **non-official majority**, an **elected non-official chairperson**, regular elections, and some taxing power.
- In **1909**, the Royal Commission on Decentralisation, chaired by **Hobhouse**, recommended reviving **village panchayats**.
- In **1919**, under the dyarchy (द्वैध शासन) system, local self-government became a **transferred** subject.
- In **1935**, it became a **provincial subject** under provincial autonomy.
- In **1952** and **1953**, the **Community Development Programme** and the **National Extension Service** were launched, but both were official-driven and failed to secure real people's participation — this failure led directly to the **Balwant Rai Mehta Committee**.
- On **2 October 1959**, Nehru (नेहरू) inaugurated the first 3-tier Panchayati Raj system at **Nagaur, Rajasthan**, making Rajasthan the first State to adopt it; **Andhra Pradesh** followed next.
- In **1989**, the **64th Amendment Bill** under Rajiv Gandhi sought to give PRIs constitutional status; it **passed the Lok Sabha but failed in the Rajya Sabha**, falling short of the special majority.
- Its twin, the **65th Amendment Bill** on municipalities, also fell at the same time.
- Under the Narasimha Rao government, the **73rd Amendment** was passed in **December 1992**, received the President's assent on **20 April 1993**, and came into force on **24 April 1993**.
- States were given **one year** to bring their own laws into conformity with the 73rd Amendment.
- The **74th Amendment** came into force soon after, on **1 June 1993**.

Balwant Rai Mehta Committee (1957)

This Committee was set up to study why the Community Development Programme and the National Extension Service had failed, and its slogan was **democratic decentralisation**.

- It recommended a **three-tier** structure: the Gram Panchayat at the village level, the Panchayat **Samiti** (समिति) at the block level, and the Zila Parishad (जिला परिषद) at the district level.
- The village-level Gram Panchayat was to be **directly** elected, while the Samiti and the Zila Parishad were to be **indirectly** constituted, from the chairs of the tier below plus co-opted members.
- The **Samiti** was meant to be the system's **executive** body, while the **Zila Parishad** (जिला परिषद) was meant to play only an **advisory, coordinating, and supervisory** role.
- The Committee wanted a genuine transfer of **power, funds, and functions**, with all development programmes channelled through these bodies.

- It recommended that the **District Collector** chair the Zila Parishad — an official chairmanship that was later criticised.
- The National Development Council **accepted** these recommendations in **1958**, and **Rajasthan** (थार) was the first State to adopt the system, in **1959**.

Ashok Mehta Committee (1977)

This Committee was appointed by the Janata government after PRIs had visibly decayed through the 1960s and 70s, prompting the "**grass without roots**" description.

- It recommended replacing the three-tier system with a **two-tier** one: the **Zila Parishad** at the district level and the **Mandal Panchayat** for a cluster of villages with a population of roughly **15,000–20,000**.
- It held that the **district**, not the block, should be the first point of decentralisation under popular supervision below the State level — remembering "district, not block" is a trap tested in 2023.
- It recommended **open participation of political parties** in PRI elections.
- It wanted PRIs to have **compulsory taxing** powers, along with social audit (सामाजिक अंकेक्षण) by a district council.
- It recommended a dedicated **Minister for Panchayati Raj** in the State cabinet.
- It recommended seats for **SC/ST** in proportion to their population, and **two seats reserved for women**.
- It was the **first major committee** to recommend giving PRIs **constitutional status**.
- It wanted officials such as the Collector to sit only as **members**, not as chairpersons.

Other committees (one home each)

- The **Santhanam Committee (1963)** focused on **PRI finances** — taxes, grants, and assignment of revenue.
- The **Dantwala Committee (1978)** was a Planning Commission (योजना आयोग) Working Group on **block-level planning** — its fact is "block-level planning", **not** "rural credit".
- The **G.V.K. Rao Committee (1985)**, set up by the Planning Commission, found the existing rural-development machinery too **bureaucratic**.
- It coined the phrase "**grass without roots**" for PRIs whose elections were not being held regularly.
- It recommended making the **district** the basic unit of planning, creating a **District Development Commissioner**, holding regular elections, and treating PRIs as the vehicles of rural development.
- The **L.M. Singhvi Committee (1986)** recommended giving PRIs **constitutional recognition (मान्यता)**.
- It described the **Gram Sabha** (ग्राम सभा) as the embodiment of direct democracy, calling it a "village republic".
- It also proposed **Nyaya Panchayats** for a cluster of villages, judicial tribunals to settle election disputes, and more financial resources for PRIs.
- The **P.K. Thungon Committee (1988)** recommended constitutional status, a **3-tier** structure, a **5-year** tenure, a State Finance Commission, and reservation.
- The **Gadgil Committee (1988)** proposed largely the same skeleton that eventually became the 73rd Amendment — a 3-tier structure, reservation for SC/ST and women, a State Election Commission, and a fixed term.

PYQ — UPPCS Prelims 2024, Q129

Which one of the following is not a level in the three-tier Panchayati Raj recommended by Balwant Rai Mehta Committee?

A. Panchayat Samiti (पंचायत समिति) B. Gram Panchayat C. Zilla Panchayat D. Nyaya Panchayat

Show answer

Ans: D — Nyaya Panchayat. That is a **Singhvi** idea, not a BR Mehta tier.

PYQ — UPPCS Prelims 2023, Q18

With reference to the recommendations of the Ashok Mehta Committee (1977) on Panchayati Raj, which of the following statement(s) is/are correct?

1. The three-tier system of Panchayati Raj should be replaced by the two-tier system.
2. A block should be the first point for decentralization under popular supervision below the State level.

A. Only 1 B. Only 2 C. Both 1 and 2 D. Neither 1 nor 2

Show answer

Ans: A — Only 1. First point = **district**, not block.

PYQ — UPPCS Prelims 2022, Q93

Match List-I (Committee) with List-II (Year of Appointment):

List-I

Code	Item
A	Balwant Rai Mehta
B	Ashok Mehta
C	L.M. Singhvi
D	P.K. Thungon

List-II

Code	Item
1	1957
2	1977
3	1986
4	1988

> Note: Row order in the tables is **not** the answer.

A. A-4, B-1, C-2, D-3 B. A-1, B-2, C-3, D-4 C. A-2, B-3, C-1, D-4 D. A-3, B-4, C-2, D-1

Show answer

Ans: B.

PYQ — UPPCS Prelims 2024, Q25

Which one of the following is not correctly matched?

A. G.V.K. Rao Committee – Planning at the Block Level B. Dantwala Committee – Rural Credit C. Santhanam Committee – Panchayati Raj Finances D. Ashok Mehta Committee – Panchayati Raj Institutions

Show answer

A is wrongly matched (GVK Rao = **district**, not block). **B is also a false pair** (Dantwala = **block-level planning**, not rural credit). C and D are correct. Learn the four (चातुर्याम) facts; do not credit GVK Rao with block planning.

Chronology fact (2021 stem): BR Mehta (1957) → Ashok Mehta (1977) → G.V.K. Rao (1985) → L.M. Singhvi (1986).

73rd Amendment — what it actually did

The 73rd Amendment created a **third tier of federalism** — Union, State, and local. It gives a uniform skeleton across the country, but States still own the flesh, since local government remains **Entry 5 of the State List**.

Compulsory — things every State must do - Every State must have a **Gram Sabha** (Art. 243A). - Every State must have a **3-tier** structure, though the intermediate tier can be skipped if the State's population is ≤ **20 lakh**. - Every seat at every tier must be filled by **direct** election. - The minimum age to contest is **21**. - Seats must be reserved for **SC/ST** in proportion to their population, and for **women**, who must get **at least 1/3** of both seats and chairperson posts. - Every Panchayat has a **5-year** term, and a fresh election must be held within **6 months** of any dissolution. - Every State must set up a **State Finance Commission** (Art. 243I), a **State Election Commission** (Art. 243K), and a system of accounts audit (Art. 243J).

Voluntary — things a State may choose to do - A State **may** give representation to MPs, MLAs, and MLCs. - A State **may** additionally reserve seats for **OBCs**. - A State decides **how much** of the 29 subjects in the 11th Schedule it actually hands over to the Panchayats. - A State decides, by its own law, **what powers** the Gram Sabha actually gets. - A State decides the **mode of electing** the village chairperson. - A State decides whether MPs and MLAs get to **vote** in the Panchayat.

What the 73rd Amendment did *not* do: it did **not** create Nyaya Panchayats, did **not** fix a 50% women's quota, did **not** force devolution of all 29 subjects, and did **not**, by itself, give PRIs a direct share of the

Union Budget — that share comes only through the Finance Commission / SFC route.

For Mains, the significance lies in: constitutional status, regular elections, reservation (including for chairpersons), the SEC/SFC mechanism, the Gram Sabha, and the 11th Schedule as a menu of subjects. The persistent **gap** is that the "3 Fs" — functions, functionaries, and funds — remain incomplete; parallel bodies such as the DRDA often bypass the PRIs; and SFC reports are routinely tabled and then ignored.

Arts. 243–243O (elaboration)

Part IX is the PRI skeleton. Read it as six jobs, not as sixteen isolated articles.

Job	Articles	One fact
Who they are	243, 243A, 243B	Definitions, Gram Sabha, three tiers
How they sit	243C, 243D	Direct seats; reservation
How long they sit	243E, 243F	5 years; age **21**
What they can do	243G, 243H, 243J	11th Schedule is a menu, not a gift
Money and polls	243I, 243K	SFC and SEC — both by the **Governor**
Where and courts	243L–243O	UTs, exclusions, 1-year window, bar like **329**

> **Do not mix:seats** are always direct. The **chairperson** is not. **PESA** is Parliament's Fifth Schedule law. Nagaland / Meghalaya / Mizoram are a **different** 243M box.

Art. 243 — dictionary of Part IX

Art. 243 | definitions used only in this Part.

- It defines **District**, **Gram Sabha**, **intermediate level**, **Panchayat**, **Panchayat area**, **village**, and **population**.
- **Population** here means the last published census figures that the Centre has notified for this Part.

Art. 243A — Gram Sabha

Art. 243A | village voters, not a fourth tier.

- The Gram Sabha is every person **registered in the electoral rolls** of that village Panchayat.
- It is **not** "all residents of the village".
- Its powers come from **State law**, never from a Central notification.

Art. 243B — the three tiers

Art. 243B | village + intermediate + district.

- Every State **shall** have a Panchayat at the **village** level and at the **district** level.

- Every State shall also have an **intermediate** Panchayat, unless the State's population is **not more than 20 lakh**.
- Goa (गोवा) and Sikkim are the usual examples of the skip. Uttar Pradesh (उत्तर प्रदेश) **cannot** skip, because its population is far above 20 lakh.

Art. 243C — composition (this is the usual muddle)

Art. 243C | two different questions: who fills a **seat**, and who becomes the **chair**.

Seats (compulsory) - Every **seat** in every Panchayat is filled by **direct** election from a territorial constituency. - As far as practicable, the ratio of population to seats must be the **same** throughout the State.

Chairperson (State decides) - The chairperson of the **village** Panchayat is chosen in the manner the **State** provides. In Uttar Pradesh the **Pradhan is directly elected**. Other States may let the elected members choose the chair. - The chairpersons of the **intermediate** and **district** Panchayats are also chosen as **State law** provides. That is usually an **indirect** election from among the members.

Extra members (optional — these are not the "seats") - A State **may** let village chairpersons sit in the intermediate Panchayat. - A State **may** let intermediate chairpersons sit in the district Panchayat. - A State **may** give a place to MPs, MLAs, and MLCs, and it also decides whether they get a **vote**.

> **Logic:** "All members of a Panchayat are directly elected" is **true of seats**. It is **false** if the option also means the chairperson and every ex-officio MLA.

Art. 243D — reservation

Art. 243D | SC/ST in proportion; women ≥ **1/3**; OBC only if the State wants it.

- This article covers both **seats** and **chairperson offices**, at all three tiers.
- The constitutional floor for women is **one-third**, not one-half and not one-fourth.
- Uttar Pradesh's **50%** women quota is **State law**. The Constitution has not been amended to 50%.

Art. 243E — duration (two clocks)

Art. 243E | 5 years from the **first meeting**, not from the date of poll.

Clock 1 — the normal term - A Panchayat, unless dissolved sooner, continues for **five years** from the date of its first meeting. - An election to reconstitute it must be completed **before** those five years run out. - A later State law that changes the Panchayat's structure **cannot** cut short a sitting (बैठक) Panchayat's term.

Clock 2 — if it is dissolved early - A fresh election must then be held **before six months** from the date of dissolution. - The body that comes in after that poll sits only for the **remainder** of the original five years. It does **not** get a new five-year clock. - If that remainder is **less than six months**, an election for the leftover stump **need not** be held. The next full election waits for the original five-year cycle to end.

Worked picture: a Panchayat first met in January 2021, so its five years run to January 2026. - Dissolved in January 2024 → leftover is two years → elect within six months → the new house sits only till January

2026. - Dissolved in October 2025 → leftover is under six months → skip a mid-term poll → elect the next full house for January 2026.

Art. 243F — who may contest

Art. 243F | same disqualifications as an MLA, plus whatever the State adds.

- The minimum age to contest a Panchayat seat is **21**, not 25. The 25-year floor is for the **State Assembly**.
- A person who is disqualified for the State legislature is disqualified for a Panchayat, unless State law says otherwise on a particular ground.
- The State **may** add extra disqualifications of its own, such as having more than two living children.
- The authority that decides a disputed disqualification is whoever **State law** names. That is often the **SEC**, but the Constitution does not freeze that choice.

Arts. 243G–243J — functions, taxes, accounts

Art. 243G | the State **may** endow powers, including the **29** subjects of the 11th Schedule.

- Devolution of all 29 subjects is **not automatic**. The Schedule is a menu. The State picks what to hand over so that Panchayats can work as institutions of **self-government**.

Art. 243H | taxes only if the State authorises them.

- A State may let Panchayats **levy**, **collect**, or receive an **assignment** of taxes, duties, tolls, and fees.
- A State may also give them **grants-in-aid** from its Consolidated Fund.
- A Gram Panchayat still cannot invent GST (वस्तु एवं सेवा कर), land revenue, or customs. Those are not 243H gifts.

Art. 243J | audit is a State-law subject.

- How Panchayat accounts are kept and audited is left entirely to the **State**.

Art. 243I — State Finance Commission

Art. 243I | Governor, every **5 years**, report plus action-taken note.

- The **Governor** constitutes the SFC at the expiry of every fifth year, and may do so earlier.
- The SFC recommends how State taxes should be **shared**, which taxes Panchayats may levy, what **grants** they should get, and how PRI finances can be improved.
- The Governor must cause the report to be laid before the State legislature together with an **explanatory memorandum of the action taken**.
- The Union Finance Commission is a different body under **Art. 280**. From the 10th FC onwards it has also recommended grants **to** PRIs, routed through the State.

Art. 243K — State Election Commission

Art. 243K | PRI rolls and polls. **Not** the ECI.

- The SEC has superintendence, direction, and control of the **electoral rolls** and of **all elections** to the Panchayats.

- The State Election Commissioner is **appointed by the Governor**.
- Removal is only in the manner and on the grounds of a **High Court judge**, not by a simple State-cabinet order.
- Conditions of service **cannot be varied to the Commissioner's disadvantage** after appointment.
- The Governor may make Panchayat election rules **after consulting** the SEC.
- The ECI still runs only Parliament and State-legislature elections. Municipal polls sit with the **same** SEC under **Art. 243ZA**.

Art. 243L — Union Territories

Art. 243L | President may apply Part IX to a UT, with exceptions and modifications.

Art. 243M — where Part IX does not automatically run

Art. 243M | four different boxes. Mixing them is the trap.

Box 1 — whole States left out, unless that State itself opts in - Part IX does **not** apply to **Nagaland**, **Meghalaya** (मेघालय), or **Mizoram**. - The **Legislature of that State** may, by law, extend Part IX to itself. This is **not** a PESA job, and it is **not** a Presidential order.

Box 2 — hill councils that already exist - Part IX does not apply to the **hill areas of Manipur** that already have a district council. - **District-level** Panchayats do not apply in the **Darjeeling Gorkha Hill Council** area of West Bengal. The Council's own functions stay intact.

Box 3 — Fifth and Sixth Schedule areas (Art. 244) - Part IX does **not** automatically apply to **Fifth Schedule** areas or to **Sixth Schedule** tribal (आदिवासी) areas. - **Parliament may** extend Part IX to those areas, with exceptions and modifications. - **PESA, 1996** is that extending law for **Fifth Schedule** areas only. It does **not** touch the Sixth Schedule. - Autonomous District Councils under the Sixth Schedule (Assam, Meghalaya, Tripura, Mizoram) therefore sit **outside** PESA.

Box 4 — Arunachal Pradesh - **Art. 243D**'s reservation of seats for **Scheduled Castes** does not apply in Arunachal Pradesh, because the State is almost entirely Scheduled Tribe (अनुसूचित जनजाति). - The rest of Part IX **does** apply there.

> **Logic:** Nagaland / Meghalaya / Mizoram = **243M exclusion**. PESA States = the **ten Fifth Schedule** States. Meghalaya is in both the 243M list and the Sixth Schedule — still **not** a PESA State.

Art. 243N — one-year window for old State laws

Art. 243N | old PRI Acts could continue only until amended, or for **one year** from 24 April 1993, whichever came first.

- That is why States had to rewrite their Panchayat laws to match the 73rd Amendment within a year.

Art. 243O — courts stay out of the poll machinery

Art. 243O | same logic as **Art. 329** for Lok Sabha and Assembly elections.

- No court can question a law on **delimitation** of Panchayat constituencies or on **allotment of seats**.

- A Panchayat election can be challenged **only** by an **election petition**, filed before the authority and in the manner that **State law** names.
- Ordinary writs are not a substitute for that petition.

PYQ — UPPCS Prelims 2023, Q16

Which of the following statements is **not true** regarding Gram Sabha?

A. It has the powers and functions at the village level, like the State Legislature has at the State level. B. Its powers are determined by the Central Government. C. It is a Village Assembly consisting of all registered voters in the area of the Panchayat. D. Both (A) and (C)

Show answer

Ans: B. Powers are by **State law** (243A), not the Centre. C is the definition. A is a loose analogy, not the “not true” fact.

PYQ — UPPCS Prelims 2019, Q99

With reference to Panchayats which of the statements is/are correct?

1. Fifty percent seats shall be reserved for the women of SC/ST categories.
2. Gram Sabha is a body consisting of all persons living in the village.
3. There will be a Panchayat at intermediate level.

A. 1 only B. 2 and 3 C. Both 1 and 2 D. 3 only

Show answer

Ans: D — 3 only (with the 20-lakh exception in mind: the Constitution **provides** an intermediate tier). 1 is false (floor is **1/3**, and “50% of SC/ST women” is not the text). 2 is false — **registered voters**, not all residents.

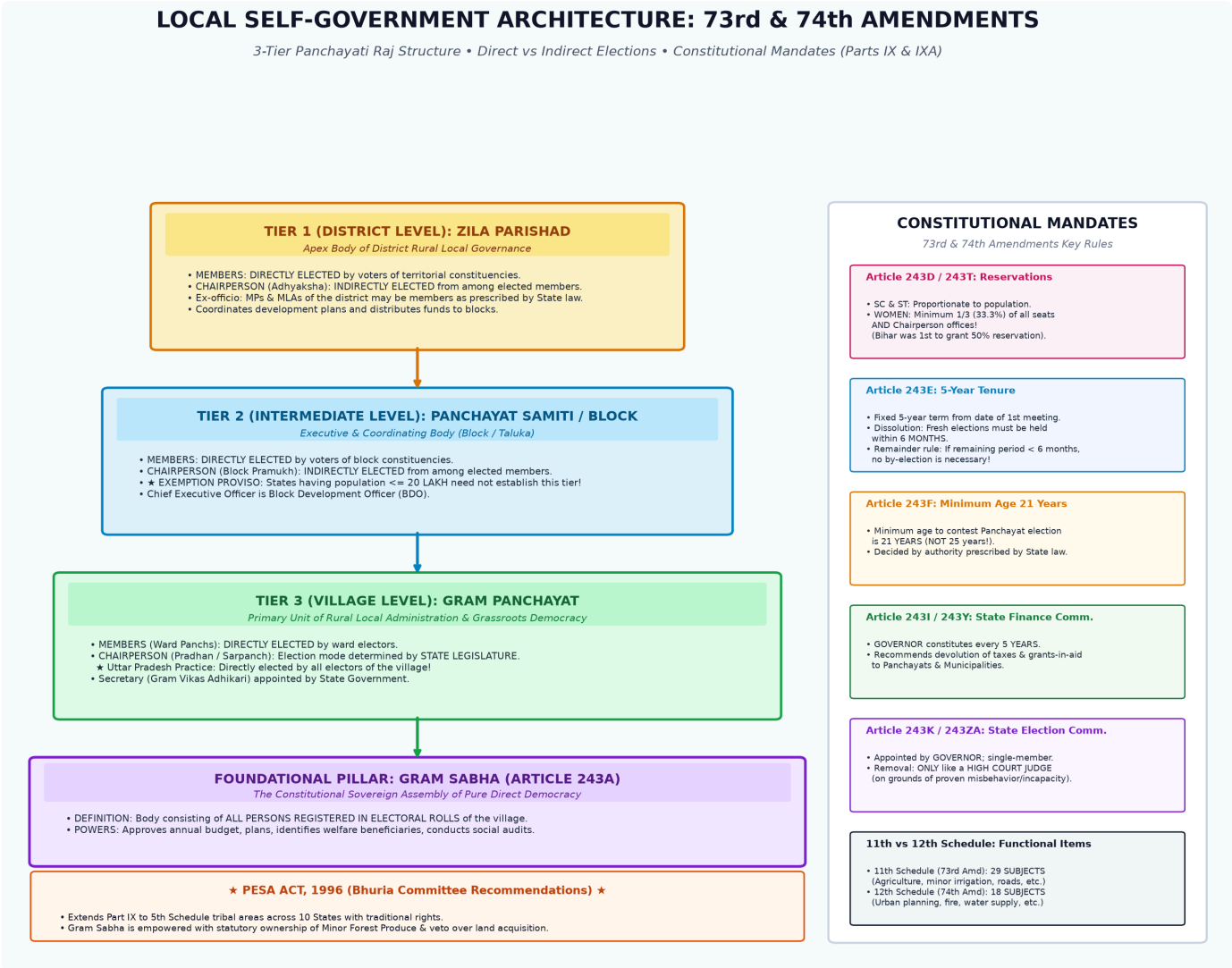
Gram Sabha (Art. 243A) — own home

This is a standalone syllabus item, so it deserves its own treatment rather than being buried inside Art. 243A. The Gram Sabha is the **only** forum of **direct** democracy anywhere in Part IX.

- Its members are every person **registered in the electoral rolls** of that village Panchayat — **not** "all residents", **not** children, and **not** persons who merely live there without being on the roll.
- The Panchayat is **representative**, while the Gram Sabha **is** the people themselves.
- The Constitution says a Gram Sabha **may** exercise such powers and perform such functions at the village level as the **Legislature of a State** may, by law, provide — the **Centre cannot** notify its powers, a trap tested in 2023.
- Typical State-law functions include approving the Gram Panchayat's plan and budget, identifying **beneficiaries** of government schemes, and conducting **social audit** of works under MGNREGA, the PDS, and Finance Commission grants.

- It also typically approves the **GPDP** (Gram Panchayat Development Plan) and can question the Pradhan directly.
- The frequency of meetings is fixed by State law, often **2–4 times a year**, and the quorum (गणपूर्ति) is also fixed by State law, commonly **1/10 or 1/5** of members.
- Some States additionally create a **Ward Sabha** or **Mahila Sabha** by statute — these are **not** mentioned in the Constitution.
- The Gram Sabha is **not** a fourth tier of the Panchayati Raj system, and it should not be confused with a **Nyaya Panchayat**.

Structural Architecture: 3-Tier Panchayati Raj & 73rd/74th Constitutional Framework



Three-tier structure & who does what

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Zila Parishad / Zila Panchayat ← district
 └─ Panchayat Samiti / Kshetra Panchayat ← intermediate / block
 └─ Gram Panchayat ← village
Gram Sabha ← voters of that GP (not a fourth tier)
```

	Village	Intermediate	District
Common name	Gram Panchayat	Panchayat Samiti / **Kshetra** (UP) / Mandal (some States)	Zila Parishad / Zila Panchayat
Area	Village or group of villages	Block / tehsil cluster	Whole district (rural)
Members	**Direct** from wards	**Direct** from territorial constituencies; State **may** add GP chairs, MPs/MLAs	**Direct**; State **may** add Samiti chairs, MPs/MLAs
Chairperson	As State law — in UP the **Pradhan is directly elected**	Usually **indirect** from among elected members	Usually **indirect**
Skip?	Never	Yes, if State pop. ≤ **20 lakh** (Goa, Sikkim, etc.)	Never
Typical work	Water, sanitation, street lights, village roads, burial grounds, beneficiary lists, village MGNREGA	Block schemes, PHCs, agriculture extension, minor irrigation	District plan, secondary schools, district hospitals, coordination of Samitis, FC grants routing

Under **Art. 243C**, there are two streams of members. The first is persons **directly elected** from territorial constituencies — this is compulsory, and forms the actual **house**. The second is **ex-officio or nominated** members, such as lower-tier chairs or MPs/MLAs — this is a **State option**, and States also decide whether such members get to **vote**.

The **Nyaya Panchayat** is **not** a constitutional tier. **Singhvi** wanted it created, and some States, including UP's older law, did have it by statute for settling petty disputes — but a 2024 trap is to call it a BR Mehta-level tier, which it is **not**.

The key **non-elected officials** are the Panchayat Secretary or Gram Panchayat Officer at the village level, the **BDO** at the Samiti/Kshetra level, and the **CEO/CDO** of the ZP (usually IAS/PCS) — playing the same executive role that a Municipal Commissioner (नगर आयुक्त) plays in urban areas.

Reservation (Art. 243D)

Reservation under **Art. 243D** applies to both **seats and chairperson offices**, at **all three tiers**. The constitutional floor is **1/3**, not 50%.

- **SC/ST seats** are reserved **in proportion** to their population in that Panchayat area, and the reserved seats are **rotated** among constituencies.
- Within those reserved seats, **women of SC/ST categories** must get **not less than 1/3**.
- Across **all seats**, **women** must get **not less than 1/3 of the total number of seats** filled by direct election — this count **includes** the SC/ST-women seats, which are not an extra addition on top.
- Among **chairperson offices**, SC/ST reservation follows their proportion in the State, and these offices are rotated among Panchayats.
- Among chairperson offices, **women** must get **not less than 1/3** of the total number of offices at each level.

- **OBC reservation** of both seats and chairs is left to the **State's discretion** — it is not a 73rd Amendment mandate.
- **Bihar** was the first State to give women a **50%** quota (around 2006), and many States, including **UP**, have since followed by their own **State law** — the **constitutional floor still remains 1/3**, since no Constitutional Amendment has raised it to 50%.
- Reserved constituencies and chairperson offices **must rotate** — a seat reserved this term is not reserved forever.

> **Logic:** "One-fourth of reserved seats for SC/ST women" (2025) is **wrong**. "Fifty percent seats for women of SC/ST categories" (2019) is **wrong**. Read the **denominator**: 1/3 of **total seats**, and 1/3 of **SC/ST seats**.

PYQ — UPPCS Prelims 2025, Q85

With reference to Panchayati Raj Institutions in India, which of the following statements is/are correct?

1. The tenure of Panchayati Raj Institutions shall be five years.
2. Out of the reserved seats, one-fourth shall be reserved for women belonging to Scheduled Castes and Scheduled Tribes.

A. Only 2 B. Neither 1 nor 2 C. Both 1 and 2 D. Only 1

Show answer

Ans: D — Only 1. Women floor is **one-third**, not one-fourth.

State Election Commission (243K)

The SEC is **not the ECI**. It has superintendence over **Panchayat (and usually municipal)** polls.

- Its job is the **superintendence, direction, and control** of preparing **electoral rolls** and conducting **all elections** to the Panchayats; the same person usually also handles **municipal elections under Art. 243ZA**.
- It is **appointed by the Governor**.
- It can be **removed only like a High Court judge** — that is, through the **same parliamentary process** used for an HC judge, not by an address of the State legislature alone — and its service conditions **cannot be varied to its disadvantage** after appointment.
- It is **not** the ECI: the ECI conducts only **Parliament and State legislature** elections. There is also no such body as a "Panchayati Raj Commission of India".
- In ***Kishan Singh Tomar*** (2006), the Supreme Court held that municipal and PRI elections **must** be held before the term expires, and that a State government cannot starve the SEC of staff or funds simply to delay polls.
- PRI electoral rolls can be mapped from the ECI's Assembly rolls, but their **revision and the actual conduct of elections** remain the SEC's job.

> **Logic:** The ECI is removed like an **SC** judge; the SEC is removed like an **HC** judge. Both are constitutional bodies — do not mix up their removal process.

State Finance Commission (243I)

The SFC is the State-level analogue of **Art. 280**, but it reports to the **Governor**, not the President.

- The **Governor** constitutes an SFC every **5 years**, and may also do so at a shorter interval; the first SFC was due within one year of the 73rd Amendment.
- It recommends the distribution between the State and the Panchayats of the **net proceeds of taxes** levied by the State.
- It also recommends which taxes, duties, tolls, or fees the Panchayats may themselves levy.
- It recommends **grants-in-aid** from the State's Consolidated Fund.
- It also recommends general measures to improve PRI finances.
- After the report is submitted, the Governor causes it to be **laid before the State legislature**, along with an **explanatory memorandum of action taken** — non-implementation of its recommendations is a political failure, not a constitutional one.
- From the **10th Finance Commission** onwards, the **Union FC** has also recommended **grants to PRIs**, routed through the State; the **14th and 15th FCs** enlarged this further, with the 15th FC giving grants to all three tiers, partly tied to sanitation and water outcomes.

Sources of PRI finance (243H + practice)

1. **Own taxes / fees** the State authorises: property, professions, vehicles, **markets and fairs**, animals, water, lighting, conservancy.
2. **Assigned / shared** State taxes (SFC formula).
3. **Grants-in-aid** — State CFI + Union FC grants routed through the State.
4. **Scheme funds** — MGNREGA, JJM, SBM, etc. (tied).
5. **Loans** as State law allows.

> **Logic:** A Gram Panchayat does **not** levy sales tax, GST, land revenue or customs. **Tax on local fairs** (2018) sits under "markets and fairs" (11th Sch. entry 22) + 243H.

PYQ — UPPCS Prelims 2023, Q17 / 2020

All elections to the Panchayats are conducted by— / The superintendence, direction and control of all elections to the Panchayats are vested in

A. State Legislature / Governor B. State Election Commission C. Election Commission of India D. Panchayati Raj Commission of India / District Panchayat Raj Officer

Show answer

Ans: State Election Commission (243K).

District Planning Committee (Art. 243ZD)

Text lives in **Part IXA (74th)** but the job is **rural + urban** in one district — that is why the syllabus lists it under PRIs.

- **Every State shall** constitute a DPC at the district level — this is **not** optional.
- Its job is to consolidate the plans prepared by the **Panchayats and the Municipalities** in the district, and then prepare a single **draft development plan** for the district as a whole.
- **Not less than 4/5** of its members must be **elected**, drawn from the elected members of the **district Panchayat** and of the **Municipalities**, in proportion to the district's rural-to-urban population.
- The remaining **up to 1/5** of members are nominated — experts, officers, or MLAs, as State law provides.
- The chairperson is whoever the **State** specifies; this is often the ZP chairperson, a minister, or the Collector, and in UP it is typically the ZP chair or a minister.
- The draft plan must have regard to spatial planning, the sharing of water and other natural resources, integrated infrastructure development, environmental conservation, and matters of **common interest** between the PRIs and ULBs.
- The finished draft is sent to the **State government** — it is only a **draft plan**, not a budget in itself.
- A DPC is **not** the same as the Zila Panchayat: the ZP is a PRI, while the DPC is a **planning body** that sits above both PRIs and ULBs. Its metropolitan-area counterpart, the **MPC (Art. 243ZE)**, is covered later in this chapter.

Eleventh Schedule — 29 subjects (243G)

Devolution is **not automatic**. 243G: the State **may**, by law, endow Panchayats with such powers as may be necessary to enable them to function as institutions of self-government, including those in the 11th Schedule. asks **number (29)**, **which is / is not**, and **11th vs 12th**.

- **Entries 1–5** cover agriculture (including agricultural extension), land improvement and land reforms, minor irrigation and watershed development, animal husbandry and dairying, and fisheries.
- **Entries 6–10** cover social and farm forestry, **minor forest produce**, small-scale industries (including food processing), khadi (खादी) and village industries, and rural housing.
- **Entries 11–15** cover drinking water, fuel and fodder, rural roads and communication links, rural electrification, and non-conventional energy (गैर-पारंपरिक (वैकल्पिक) ऊर्जा स्रोत) sources.
- **Entries 16–20** cover the poverty alleviation programme, primary and secondary education, technical and vocational training, adult education, and libraries.
- **Entries 21–25** cover cultural activities, **markets and fairs**, health and sanitation (including PHCs), family welfare, and women and child development.
- **Entries 26–29** cover social welfare of the disabled, welfare of SC/ST and other weaker sections, the public distribution system, and maintenance of community assets.

Not in the 11th (those are 12th / Union): urban planning · urban poverty · fire services · slum improvement · cattle pounds are 12th. **Major irrigation / national highways / universities** are not PRI

subjects.

> **Logic:** 29 vs 18** (11th vs 12th). “Urban planning” in a “which is in the 11th Schedule” question is the trap.

PYQ — UPPCS Prelims 2018, Q39

Which of the following taxes is levied by the Gram Panchayats?

A. Sales Tax B. Land Revenue Tax C. Tax on Local Fairs D. None of the above

Show answer

Ans: C.

PESA, 1996

PESA extends Part IX to **Schedule V** areas — **not** Schedule VI — with a deliberately stronger **Gram Sabha**.

- Its full name is the **Panchayats (Extension to the Scheduled Areas) Act, 1996**.
- It exists because **Art. 243M** does **not** let Part IX automatically apply to **Schedule V** areas; Parliament **may** extend it there, and PESA is that extending law, **with modifications** that *strengthen* the Gram Sabha.
- It followed the recommendations of the **Bhuria Committee (1995)**, chaired by Dileep Singh Bhuria.
- It came into force on **24 December 1996** — the assent date is also 24 December, so the year to remember is **1996**.
- It applies to **Schedule V areas only**, **not** Schedule VI, across ten States: **Andhra Pradesh, Chhattisgarh, Gujarat, Himachal (हिमाचल) Pradesh, Jharkhand, Madhya Pradesh, Maharashtra, Odisha, Rajasthan,** and **Telangana**.
- At its heart, in Scheduled Areas it is the **Gram Sabha** — not the Panchayat board — that is the true centre of self-government.

What the Gram Sabha / Panchayat must be competent to do (raata list) 1. Safeguard **customs, culture and community resources**. 2. Approve **plans, programmes and projects** and identify **beneficiaries**. 3. Issue a **utilisation certificate** before funds are released. 4. **Consulted** before land acquisition and before resettlement in the area. 5. **Prior recommendation** mandatory for grant of prospecting licence / mining lease for **minor minerals**. 6. **Ownership of minor forest produce**. 7. Prevent / restore **unlawful alienation of tribal land**. 8. Manage **village markets**. 9. Control **money-lending** to STs. 10. **Prohibit / regulate intoxicants** (liquor). 11. Control local **plans and resources** for such plans, including the Tribal Sub-Plan.

PESA adds extra reservation on top of Art. 243D: in Scheduled Areas, **all** chairperson posts of PRIs are **reserved for STs**, ST seats must be **not less than half** of the total seats in each PRI, and unrepresented ST communities can be given nominated representation if needed.

PESA does **not** apply to **Nagaland, Meghalaya, or Mizoram**, which are totally excluded under **Art. 243M**; it does **not** apply to **Schedule VI** areas, which have their own Autonomous District Councils; and it does **not** apply to the ordinary, non-Scheduled districts of the same ten States.

PYQ — UPPCS Prelims 2022, Q67

When was the Panchayats (Extension to the Scheduled Areas) Act passed by the Indian Parliament?

A. 1998 B. 1996 C. 1995 D. 1993

Show answer

Ans: B — 1996. 1993 = 73rd; 1995 = Bhuria.

> **Logic:** PESA ≠ 6th Schedule (6वीं अनुसूची). Nagaland / Meghalaya / Mizoram are **243M exclusions**, not PESA States.

Cooperatives & 97th Amendment (2011)

Cooperatives were originally a **State subject** (Entry 32), while multi-State cooperatives fall under the Union (Entry 44). The 97th Amendment tried to constitutionalise the **governance** of all cooperatives.

- **Art. 19(1)(c)** now includes the right to form cooperative societies as part of the fundamental right to form associations or unions.
- **Art. 43B**, a new DPSP, asks the State to promote the voluntary formation, autonomous functioning, democratic control, and professional management of cooperatives.
- The Amendment added a new **Part IXB**, covering **Arts. 243ZH–243ZT**.

Part IXB — the key facts - Under **Art. 243ZJ**, a cooperative's board can have a **maximum of 21** directors, including **1 SC/ST member and 2 women**. - Up to **2 experts** may additionally be **co-opted**, though without a vote and without counting toward the 21-member cap; functional directors, such as bank executives, are counted separately. - A board's **term** runs for **5 years** from the date of election. - Under **Art. 243ZL**, a board can be superseded or suspended for a **maximum of 6 months** — or **1 year** for a cooperative bank, aligning with the Banking Regulation Act. - Elections are conducted by an independent authority, and a State **may** use its **SEC** for this; a board **shall not** be superseded merely to avoid holding elections. - Audit is done by auditors appointed by the general body from a government-approved panel, and the audit report is placed before the general body. - **Art. 243ZO** gives every member a **right to information** about the cooperative's affairs.

In ***Union of India v. Rajendra N. Shah*** **(2021)**, the Supreme Court held that Part IXB needed ratification under the **proviso to Art. 368(2)**, since it touched the State List and Art. 246, and that this ratification had **not** been obtained. It therefore held Part IXB **void for State cooperatives**, while letting it **survive for multi-State cooperatives** — and it left **Arts. 19(1)(c) and 43B intact**.

> **Logic:** "97th made forming a coop a FR" = **true**. "Part IXB still runs every State coop" = **false** after 2021. Multi-State Co-operative Societies Act is Union law and still sits with IXB.

UP Special — Panchayati Raj

UP's intermediate tier is called the **Kshetra Panchayat** (क्षेत्र पंचायत) — not a "Samiti", unlike most other States.

- Village-level Panchayats in UP are governed by the **U.P. Panchayat Raj Act, 1947**, one of the oldest such laws, which also originally contained the State's Nyaya Panchayats.
- The upper tiers are governed by the **U.P. Kshettra Panchayats and Zila Panchayats Adhiniyam, 1961**, with both laws now read together with amendments that bring them into conformity with the 73rd Amendment.
- UP's three tiers run **Gram Panchayat** → **Kshetra Panchayat** → **Zila Panchayat**, with the intermediate tier called **Kshetra**, not "Samiti".
- As an order of magnitude, UP has about **75** Zila Panchayats (one per district), about **826** Kshetra Panchayats (one per development block), and about **58,000** Gram Panchayats.
- The village head is the **Pradhan**, who is **directly elected** by the Gram Sabha's voters, while ward-level members are called **Panches**.
- By State law, **50%** of seats and of Pradhan/chairperson posts are reserved for women in UP — higher than the constitutional floor of 1/3.
- The **U.P. State Election Commission**, based in Lucknow (लखनऊ), conducts both Panchayat and ULB elections.
- The State Finance Commission is constituted by the Governor, and its report is laid before both Houses, since UP has a bicameral legislature.
- At the village level, the **Gram Panchayat Officer/Secretary** is the key official; at the Kshetra level, it is the **BDO**; and at the Zila Panchayat level, it is the **CDO/CEO**.

> **Logic:** Do not write “Panchayat Samiti” for UP in a UP-specific question — the paper wants **Kshetra Panchayat**. Nyaya Panchayat in UP is **statutory / historical**, not a 73rd tier.

74th Amendment — Urban Local Bodies

The 74th Amendment added **Part IXA (Arts. 243P–243ZG)** and the **12th Schedule (18 subjects)**. It was passed in 1992 and came into force on **1 June 1993** — a little after the 73rd, which came into force on **24 April 1993**. It is the twin of the 73rd Amendment; its own predecessor, the **65th Bill (1989)**, had failed in the Rajya Sabha along with the 64th.

Local government remains **State List Entry 5** even after the 74th Amendment. The 74th only gives a skeleton — taxation powers and the 18 subjects of the 12th Schedule are still things "the State **may**" devolve.

Compulsory — things every State must do - Every State must recognise **three types** of municipality, as laid down in Art. 243Q. - Every seat must be filled by **direct election**. - The minimum age to contest is **21**, the term is **5 years**, and a fresh poll must be held within **6 months** of dissolution. - Seats must be reserved for **SC/ST** in proportion to population, and for **women**, who must get **at least 1/3** of both

seats and chairperson posts. - A municipality with a population of **3 lakh or more** must set up **Ward Committees** (Art. 243S). - Every State must have a **State Finance Commission** (Art. 243Y), a **State Election Commission** (Art. 243ZA), and a **District Planning Committee** (Art. 243ZD). - Every **metropolitan area** must have a **Metropolitan Planning Committee** (Art. 243ZE).

Voluntary — things a State may choose to do - A State decides how the **Mayor or President** is elected — directly, or from among council members. - A State **may** give representation to MPs, MLAs, and persons of special knowledge, though such members do not get a vote. - A State decides **how much** of the 18 subjects in the 12th Schedule it actually devolves. - A State **may** additionally reserve seats for **OBCs**.

Under an exception in **Art. 243Q**, if an **industrial establishment** already provides municipal-type services to its industrial township, the State **need not** constitute a separate municipality there — the classic example is a company (कंपनी) town.

Arts. 243P–243ZG (elaboration)

Part IXA is the ULB skeleton, running from the three types of municipality to the bar on courts.

- **Art. 243P** defines a "**Metropolitan area**" as an area with a population of **10 lakh or more**, spread across one or more districts, made up of two or more municipalities, panchayats, or other contiguous areas, and specified as such by the **Governor**. It also defines "Municipality" to include all three types covered below.
- **Art. 243Q** requires the constitution of a **Nagar Panchayat** (for a transitional area), a **Municipal Council** (for a smaller urban area), or a **Municipal Corporation** (for a larger urban area), with the Governor deciding the classification based on population, density, revenue, non-agricultural employment, and economic importance.
- **Art. 243R** requires that **all seats be filled by direct election** from territorial wards.
- Under 243R, a State **may** additionally give a seat to persons with special knowledge of municipal administration (though without a vote), to MPs/MLAs/MLCs, and to the chairpersons of committees, with the ratio of population to seats kept as equal as practicable.
- **Art. 243S** requires that in a municipality with a population of **3 lakh or more**, one or more wards **shall** be grouped into Ward Committees.
- If a Ward Committee covers only one ward, that ward's own councillor chairs it; if it covers several wards, the chairperson is decided as State law provides.
- **Art. 243T** follows the same reservation scheme as **Art. 243D**: SC/ST seats in proportion to population and rotated, women getting **at least 1/3** of both total seats and SC/ST seats, chairperson posts reserved on the same pattern, and OBC reservation left optional.
- **Art. 243U** fixes the term at **5 years** from the first meeting; if dissolved early, a fresh election must be held **before 6 months** elapse.
- A reconstituted body under 243U sits only for the **remainder** of the term, and if that remainder is **less than 6 months**, an election for it is not required.
- **Art. 243V** applies the same disqualification grounds as the State legislature, unless the State adds more, and fixes the minimum age to contest at **21 — not 25**, a trap tested in 2025.
- **Art. 243W** lets the State **endow** municipalities with powers over the **18 subjects** of the 12th Schedule.

- **Art. 243X** lets the State authorise municipalities to levy taxes, duties, tolls, and fees, and to receive assigned revenues and grants.
- **Art. 243Y** uses the **same** State Finance Commission created under 243I to also review **municipal** finances.
- **Art. 243Z** leaves the audit of municipal accounts to State law.
- **Art. 243ZA** uses the **same** State Election Commission as under 243K — this is **not** the ECI, a trap tested in 2024.
- **Art. 243ZB** allows the President to apply Part IXA to Union Territories, with exceptions.
- **Art. 243ZC** does **not** let Part IXA automatically apply to Scheduled or tribal areas; Parliament **may** extend it, but there is no urban equivalent of PESA (1996) for ULBs.
- **Art. 243ZD** is the same District Planning Committee already covered under the PRIs — it consolidates **Panchayat and municipal** plans together, with **at least 4/5** of its members elected.
- **Art. 243ZE** requires that every **metropolitan area shall** have a Metropolitan Planning Committee.
- **Art. 243ZF** lets existing municipal laws continue until amended, or for **1 year**, whichever is earlier.
- **Art. 243ZG** bars courts from questioning delimitation or seat allotment, and allows an election to be challenged **only** through an election petition, on the same logic as **Art. 329**.

PYQ — UPPCS Prelims 2025, Q39

With reference to Municipalities, which of the following statements is/are correct?

1. The eligible age to be a member of a municipality is 25 years.
2. One-third of the total number of seats to be filled by direct election in municipalities is reserved for women.

A. Both 1 and 2 B. Neither 1 nor 2 C. Only 2 D. Only 1

Show answer

Ans: C — Only 2. Age is **21** (243V), same as Panchayats. Women floor is **1/3** (243T).

PYQ — UPPCS Prelims 2024, Q24

Which of the following are the functions of the Election Commission of India?

1. Conduct of elections for the posts of the Speaker and the Deputy Speaker of the Lok Sabha and Deputy Chairman of the Rajya Sabha.
2. Conduct of elections of the Municipal Corporations and Municipalities.
3. Deciding on all doubts and disputes arising out of the above elections.

A. 2 and 3 B. 1 and 2 C. 1 and 3 D. None of the above

Show answer

Ans: D — None. Speaker is elected by the **House**. Municipal elections = **SEC (243ZA)**. Election disputes of those offices are not ECI's.

PYQ — UPPCS Prelims 2024, Q146

Which Amendment Acts deal with Local Governance Institutions in India?

A. 63rd and 64th B. 86th and 87th C. 42nd (42वां) and 43rd D. 73rd and 74th

Show answer

Ans: D. 64th/65th **failed** in the RS (1989).

73rd vs 74th (one table)

	73rd / Part IX	74th / Part IXA
In force	**24 April 1993**	**1 June 1993**
Body	Panchayat	Municipality
Tiers / types	Village – intermediate – district	Nagar Panchayat – Council – Corporation
Direct-democracy forum	**Gram Sabha**	**No** urban Gram Sabha in the text; **Ward Committee** if pop. ≥ 3 lakh
Schedule	**11th = 29**	**12th = 18**
Planning	DPC (with ULBs)	DPC + **MPC** (metros, pop. ≥ 10 lakh)
Elections / finance	SEC 243K (राज्य निर्वाचन आयोग) · SFC 243I	**Same** SEC 243ZA · **same** SFC 243Y
Age / term / women	21 · 5 years · ≥ 1/3	**Same**
Industrial exception	—	Township already serviced by industry **need not** have a municipality

Three constitutional types (243Q)

The **Governor**, acting for the State government, classifies an area into one of the three types. The tests used are population, density, revenue, the **percentage of employment in non-agriculture**, and general economic importance. The Constitution itself does **not** fix a single all-India population cut-off for this classification.

There is **no urban equivalent of Art. 40**. The DPSP in Art. 40 organises **village** panchayats only, and cities are governed by Part **IXA** alone.

Type	Also called	Where	Political head	Executive
Nagar Panchayat	Town panchayat	**Transitional** (rural → urban)	Chairperson / President	Executive Officer
Municipal Council	Municipality / **Nagar Palika Parishad** (UP)	**Smaller urban**	President / Chairperson	Executive Officer

Type	Also called	Where	Political head	Executive
Municipal Corporation	**Nagar Nigam** / Mahanagar Palika	**Larger urban**	**Mayor**	**Municipal Commissioner** (IAS)

Nagar Panchayat

- A Nagar Panchayat is meant for an area in **transition** from a village to a town — not yet a full city, but no longer a pure Gram Panchayat either.
- Its structure works like a **mini Municipal Council**: elected ward members, a **Chairperson** (elected either directly or from among the members, as State law provides), and a State-appointed **Executive Officer**.
- After the 74th Amendment, most old **Town Area Committees** and many **Notified Area Committees** were converted into Nagar Panchayats, turning them into **elected Art. 243Q bodies**.
- Its functions cover the lighter end of the 12th Schedule — street lights, sanitation, local roads, water, and markets — as the State chooses to endow.
- Its reservation scheme, 5-year term, minimum age of 21, and SEC-run elections are all **the same** as for any other municipality.

Municipal Council (Municipality)

- The Municipal Council is the **workhorse** ULB for ordinary towns and smaller cities; in UP it is called the **Nagar Palika Parishad**.
- It is a **Council** of ward councillors, all **directly elected**, presided over by a **President or Chairperson** — often elected from among the members, though some States allow direct election.
- Its executive is an **Executive Officer or Chief Officer**, appointed by the State — effectively the Council's own "mini-Commissioner".
- Standing committees for subjects like health, works, and tax are set up as the State Act provides.
- MPs, MLAs, and persons of special knowledge may sit on the Council if the State so provides, but under **Art. 243R**, such experts have **no vote**.
- It follows the same **243T reservation**, **243U term**, and **243ZA SEC-run elections** as a Corporation — the real difference is only **scale and the title of the executive**, not the underlying constitutional skeleton.

Municipal Corporation

The Municipal Corporation governs **larger urban areas**, and Laxmikanth's classic lead is that it has three organs.

- The **Council/Corporation** itself consists of directly elected councillors, plus optional ex-officio members; it is the **deliberative** organ, passing resolutions, voting (गणपूर्ति) the budget, and making by-laws.

- The **Standing Committees** are made up of councillors organised subject-wise — engineering, health, tax, education, and so on — and they scrutinise matters in detail; many Acts make a Standing Committee's decision nearly final on its subject.
- The **Municipal Commissioner** is usually a State-appointed **IAS officer** and is the **executive** organ — implementing decisions, spending funds, managing staff, and exercising emergency powers.

The city is divided into wards, or territorial constituencies, with one councillor per ward, plus any nominated non-voting experts the State chooses to add.

Other officers — the Chief Engineer, Health Officer, and Assessor and Collector of tax — all work under the **Commissioner**, not under the Mayor.

Mayor vs Municipal Commissioner

India uses the **Commissioner system** (British), not the US strong-mayor model.

	Mayor	Municipal Commissioner
Who	Elected **from among councillors** *or* **directly** (State law). "First citizen"	Appointed by the **State government** (typically **IAS**)
Nature	Political / **ceremonial** in most corporations	Real **executive**
Does	Presides; represents the city; casting vote if the law so provides	Implements resolutions, prepares budget, appoints staff, collects tax, emergency powers
Tenure	**1 year** (rotational, many old Acts) **or** the full **5-year** term if directly elected	During posting — **transferable**
Removal	No-confidence (अविश्वास प्रस्ताव) / State law	Transfer; the House **cannot** vote him out
Vote in council	Yes	**No**

> **Logic:** "The Mayor runs the corporation" is **false** in the default Indian model. Directly-elected Mayors (some States) still do **not** usually get the Commissioner's statutory executive powers. Deputy Mayor / Vice-President is a State-Act office, not in Part IXA.

Reservation in ULBs (Art. 243T)

This deserves its own syllabus bullet — do **not** just write "same as Panchayats" and stop. The **scheme** mirrors Art. 243D, but the **article number here is 243T**.

- **SC/ST seats** are reserved **in proportion** to their population in that municipality, and the reserved seats are **rotated**.
- **SC/ST women** must get **not less than 1/3** of those reserved seats.

- **Women overall** must get **not less than 1/3 of the total seats** filled by direct election, including the SC/ST-women seats within that count — a fact tested in 2025.
- Among **chairperson posts** (Mayor/President), SC/ST reservation follows their proportion in the State, and **women** must get **not less than 1/3** of chairperson posts, with rotation.
- **OBC reservation** is left to the State's discretion.
- Several States, including **UP**, give women **50%** reservation by **State law** — the constitutional floor itself remains **1/3**.

Ward Committee (243S)

A Ward Committee is a **committee of councillors** — it is **not** an urban equivalent of the Gram Sabha.

- It **shall** be constituted in any municipality with a population of **3 lakh or more**; below that threshold, a State *may* still choose to create one, but the Constitution does not force it.
- It groups one or more wards together so that the corporation does not become remote from the neighbourhood it serves.
- If a Ward Committee covers a **single ward**, that ward's own **councillor becomes its chairperson**; if it covers several wards, the chairperson is decided as State law provides.
- Its functions are set by State law, and typically cover local works, sanitation, beneficiary lists, and a mini version of the 12th Schedule.
- Part IXA has **no** urban Gram Sabha, so a Ward Committee should not be confused with one.

Some States have separately created an **Area Sabha** or **Mohalla Sabha** by community-participation laws — this consists of the voters of a single polling booth, and is a **statutory** creation, not something found in Art. 243S.

Metropolitan Planning Committee (243ZE)

The **MPC** is the metropolitan analogue of the DPC, but it requires only **at least 2/3** of members to be elected, not 4/5.

- Every **metropolitan area** — a population of **10 lakh or more**, spread across one or more districts, made up of two or more municipalities, panchayats, or other contiguous areas — **shall** have an MPC, with the area **specified by the Governor**.
- Its job is to prepare a single **draft development plan** for the entire metropolitan area.
- That draft must have regard to the plans of the municipalities and panchayats inside the metro, coordinated spatial planning, the sharing of water and other natural resources, integrated infrastructure, the environment (पर्यावरण), and the **overall objectives of the Government of India and the State**.
- **Not less than 2/3** of its members must be **elected**, drawn from the elected members of the municipalities and the chairpersons of the panchayats in the metro area, in proportion to the population each represents; the rest are nominated experts, officers, or MLAs.
- Its chairperson is whoever the **State** specifies.

- The finished draft is sent to the **State government** — like the DPC's, it remains only a draft.
- Do not confuse the MPC with the DPC: the **DPC** covers **every district**, both rural and urban, with **at least 4/5** elected members, while the **MPC** covers **metros only**, with **at least 2/3** elected members. A metro district still has its own DPC, and the MPC's plan sits **above** the municipal plans within that metro.

Twelfth Schedule — 18 subjects (243W)

Devolution = State **may** (same "may" as 243G).

- **Entries 1–6** cover **urban planning** (including town planning), regulation of **land-use** and building construction, planning for economic and social development, roads and bridges, and water supply for domestic, industrial, and commercial use.
- **Entries 7–12** cover **fire services**, urban forestry and ecology (पारिस्थितिकी), welfare of weaker sections including the disabled, **slum** improvement, **urban poverty** alleviation, and parks and playgrounds.
- **Entries 13–18** cover cultural and aesthetic aspects, burials and cremation grounds, cattle pounds, prevention of cruelty to animals, registration of **births and deaths**, street lighting and public conveniences, and regulation of **slaughterhouses and tanneries**.

> **Logic:** Urban planning / slum / fire / urban poverty **are** 12th**, not 11th.** Minor forest produce / markets and fairs **are** 11th**, not 12th. Count:** 29 vs 18**.

ULB finance (243X + 243Y)

ULBs are reviewed by the **same** State Finance Commission as the Panchayats, since **Art. 243Y** simply reads Art. 243I together with "municipalities". Union Finance Commission grants to ULBs began from the **10th FC** onwards, and the **15th FC** enlarged urban grants, tying part of them to drinking water, sanitation, and solid waste.

- A ULB's main **own tax** is the **property tax**, alongside charges for water, conservancy, lighting, professions, advertisements, and parking; **octroi** has almost disappeared in the GST era.
- **Assigned or shared** State taxes are given as the SFC recommends.
- **Grants** flow from the State's Consolidated Fund and from the Union Finance Commission, routed through the State.
- **User charges** for water, sewerage, and parking have been pushed by the **15th FC**.
- A ULB does **not** levy GST, customs duty, income tax, or land revenue.

Devolution of the 18 subjects of the 12th Schedule remains a matter of "the State **may**" — the same "3 Fs" gap (functions, functionaries, and funds) that affects PRIs is just as incomplete in cities. In practice, Development Authorities often hold the land-use function that is nominally a 12th Schedule entry.

Extra-constitutional / statutory urban bodies

These bodies were **not created by Part IXA**, and the 74th Amendment did not abolish them. After 1993, most States converted their old Town Area and Notified Area Committees into **Nagar Panchayats**, turning them into elected Art. 243Q bodies.

Cantonment Board

A Cantonment Board is created under the **Ministry of Defence / Cantonments Act** — it is **not** a 74th-style municipality.

- It is governed by the **Cantonments Act, 2006**, which replaced the earlier 1924 Act; this sits in the Union List (संघ सूची) under the **Ministry of Defence**, and is **not** a State municipal Act, and **not** part of Part IXA.
- It handles civil administration only of the **civil area** of a military station — the military area itself stays with the Army (सेना).
- Its membership mixes **elected civilians** with **nominated or ex-officio military members**; the **President is the Station Commander**, while the **Vice-President** is chosen from among the elected members.
- Its **CEO** comes from the **Indian Defence Estates Service**, a central cadre.
- Cantonments are graded into four categories by population — **Category I** above 50,000, **Category II** 10,000–50,000, **Category III** 2,500–10,000, and **Category IV** below 2,500 — and board size follows the category.
- Civilian members serve a **5-year** term, and the Board levies house tax, water charges, and conservancy charges within the civil area.
- Cantonment elections are conducted under the Cantonments Act itself — **not** under Art. 243ZA or the SEC.
- India has a little over **60** cantonments; UP alone has several, including Lucknow, Kanpur (कानपुर), Meerut (मेरठ), Prayagraj (प्रयागराज), Varanasi (वाराणसी), and Bareilly.
- The 74th Amendment **does not** convert a Cantonment into a Municipal Corporation.

Notified Area Committee vs Town Area Committee vs Nagar Panchayat

	Notified Area Committee	Town Area Committee	Nagar Panchayat
Source	State **notification**	Old **State Act**	**Art. 243Q** (74th)
Where	Fast-growing / special area **not yet** fit to be a municipality	Small town	Transitional rural→urban
Members	**All nominated**	Often **partly elected, partly nominated**	**All seats directly elected**
Chair	Nominated	As the old Act	Elected (State law)
After 74th	Many converted to Nagar Panchayat	Mostly **abolished** / converted	The constitutional replacement

Parallel bodies (why the elected ULB often looks weak)

- A **Township** — such as a PSU, steel-plant, or dam (बांध) township — has a company providing municipal-type services, and the **243Q exception** may apply to it.
- A **Port (बंदरगाह) Trust** administers a major port and is a Union-level body.
- A **Development Authority**, such as the **Lucknow Development Authority (LDA)** or MDA, handles the master plan, land, and housing, but is **not an elected** body.
- Special-purpose **housing, water, or sewerage boards** often **bypass** the municipality entirely for that particular 12th Schedule function.
- The **NDMC** (New Delhi) has a largely **nominated** council and is not a typical 74th-style corporation, while the **MCD** is the elected Delhi corporation — its unification/split status changes with the law, so do not freeze a count.

The **Central Council of Local Government** is an advisory body under the Union government (now under MoHUA) for urban policy — it is **not** a constitutional body.

Urban evolution (firsts)

- In **1688**, the East India Company set up the **Madras Municipal Corporation**, the **first** municipal corporation in India; Calcutta and Bombay followed in **1726**.
- In **1882**, **Lord Ripon's** resolution created elected local boards for both urban and rural areas.
- In **1919** and again in **1935**, local self-government became a transferred and then a provincial subject, respectively.
- In **1959**, among other State laws, the **UP Municipal Corporation Act** was passed.
- In **1989**, the **65th Amendment Bill** on municipalities failed in the Rajya Sabha, alongside the 64th Amendment Bill on Panchayats.
- The **74th Amendment** finally came into force on **1 June 1993**.

PYQ — UPPCS Prelims 2021, Q145 (stem; options garbled in some dumps)

In India the First Municipal Corporation was set up in which one among the following places?

Show answer

Ans: Madras (Chennai), 1688. Not Calcutta / Bombay (1726), not Delhi.

UP Special — Urban Local Bodies

UP's three ULB types are called **Nagar Nigam, Nagar Palika Parishad,** and **Nagar Panchayat**.

- Nagar Palika Parishads and Nagar Panchayats are governed by the **U.P. Municipalities Act, 1916**, while Nagar Nigams are governed by the **U.P. Municipal Corporation Act, 1959**.
- In terms of naming, a **Nagar Nigam** is a Corporation, a **Nagar Palika Parishad** is a Council, and a **Nagar Panchayat** is the transitional type.

- UP has about **17** Nagar Nigams, including Lucknow, Kanpur, Agra, Varanasi, Prayagraj, Meerut, Ghaziabad, Bareilly, Aligarh (अलीगढ़), Moradabad, Saharanpur, Gorakhpur (गोरखपुर), Firozabad, Jhansi (झांसी), Shahjahanpur (शाहजहाँपुर), Mathura (मथुरा), and Ayodhya (अयोध्या) — this count can change, so focus on learning the **names of the types**, not a brittle roster.
- The **Mayor** is the political head of a Nagar Nigam, while the **Nagar Ayukt (Commissioner)** is its State-appointed executive.
- By State law, UP reserves **50% of seats for women** — higher than the constitutional floor of 1/3 under Art. 243T.
- The **same U.P. State Election Commission** that conducts Panchayat elections also conducts ULB elections.
- The **Lucknow Development Authority (LDA)** and other Development Authorities handle the master plan and land, but they are **not** the Nagar Nigam itself; Cantonment Boards also sit **beside** the Nigam in cities like Lucknow, Kanpur, Meerut, and Prayagraj.
- Union schemes such as AMRUT, SBM-Urban, PMAY-U, and Smart Cities are delivered **through** the ULB or a dedicated SPV — they do not replace the 74th Amendment framework.

Mains link (one frame)

The 73rd and 74th Amendments gave local government constitutional status, but both **Art. 243G and Art. 243W only say "may"** — so the strength of this third tier is still very much a State gift. The **Commissioner system** explains why even a directly elected Mayor does not automatically mean a strong executive. Cantonment Boards and Development Authorities show how Union-level and parallel bodies still leak around the 74th Amendment's framework. The **SEC**, removable like a High Court judge, is the electoral analogue of the ECI at the local level — do **not** merge the two offices, and do **not** hand municipal polls to the ECI.